

MOTION TO CONTINUE TRIAL AND TRIAL-RELATED DEADLINES

TENTATIVE RULING: The Court, having considered Defendant David Langon Construction, Inc.’s showing of good cause, the factors under Rules of Court, rule 3.1332(d), and the parties’ briefs, GRANTS the motion. The Trial Management Conference (TMC) is hereby continued to December 3, 2026 at 8:30 a.m. in Dept. B, and Trial is continued December 7, 2026, at 8:30 a.m. in Dept. B. The Court will sign the proposed order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Maudie Pollatrini v. Auberge Resorts, LLC et al

24CV001401

[1] DEFENDANT AUBERGE RESORTS, LLC’S MOTION TO COMPEL
ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Auberge Resorts LLC (Auberge) moves for an order compelling Plaintiff Maudie Pollatrini to arbitrate her claims asserted against Auberge in this action on grounds “that Plaintiff entered into a binding and enforceable Arbitration Agreement . . .” (Notice of Motion at 2:7-9.)

A. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*)).